

**PROVIDER GROUP
PROFESSIONAL SERVICES AGREEMENT
FOR TELEHEALTH BUSINESS**

THIS PROVIDER GROUP PROFESSIONAL SERVICES AGREEMENT (this “Agreement”) is entered into as of the date on which the Business clicks to accept this Agreement (the “Effective Date”), by and between the licensed professional entity identified in its Bask Health platform profile (“Provider”), and the telehealth business accepting this Agreement through the Bask Health platform (“Business”). Provider and Business may be individually referred to herein as “Party” and collectively referred to herein as the “Parties.”

BACKGROUND

WHEREAS, Provider is a professional entity employing duly licensed healthcare professionals who provide medical services, including telemedicine and prescription management;

WHEREAS, Business is a telehealth business providing a direct-to-consumer telehealth website (the “Website”) with interfaces for onboarding, for connecting to healthcare professionals and order fulfillment, and for receiving product support;

WHEREAS, both Parties utilize Bask Health, Inc., a third-party software platform for certain telehealth integrations (“Bask”); and

WHEREAS, the Parties desire to integrate via Bask and engage in a service agreement to enable to provision of medical services by Provider to the Business’ end-users (each, a “Patient”).

NOW THEREFORE, in consideration of the premises and the mutual covenants herein contained, the parties hereto agree as follows:

1. Provider’s Obligations.

a. Provider shall make available licensed clinicians who are trained and qualified to provide professional services pursuant to this Agreement (each, a “Clinician”), including but not limited to providing remote healthcare services and prescription management services. Such Clinicians will evaluate Patients and determine whether treatment via telemedicine is appropriate based on the Patient’s medical circumstances, applicable law and medical standards, or whether the Patient should be referred to in-person care.

b. For the duration of this Agreement, Provider shall ensure that a Clinician is available to promptly review and appropriately respond to each telemedicine visit assigned to Provider.

c. Provider shall ensure that each Clinician is duly licensed in the state(s) in which such Clinician conducts telemedicine visits.

d. All decisions regarding clinical care shall be based solely upon the professional medical judgment of Provider and its Clinicians and shall be made in the best interests of the Patients. Provider shall, at all times during the Term, have ultimate authority, control, and direction over all

clinical care of the Parties' mutual Patients. Provider shall be solely responsible for all medical, professional, and ethical matters concerning its Clinicians. Provider professional responsibilities include, without limitation, the right and obligation to determine what documentation is necessary for a Clinician to make a decision about the treatment of Patients. Provider and its Clinicians shall not contact or solicit Patients other than for purposes of (i) providing professional services pursuant to the terms of this Agreement or (ii) as otherwise required by law. Provider shall maintain Patients' medical records in accordance with applicable federal and state laws pertaining to data privacy and security.

e. Provider and its Clinicians shall comply with and stay up to date on: (i) applicable ethical standards established by the medical and healthcare professions; (ii) applicable clinical standards and protocols established by the medical and healthcare professions; and (iii) applicable healthcare laws and regulations.

f. **Insurance.** Provider represents and warrants that it, and each Clinician, has obtained and will maintain throughout the Term professional malpractice insurance coverage from a commercially reasonable, U.S.-based carrier in a minimum amount of \$1,000,000 per occurrence and \$3,000,000 in the aggregate.

2. Business' Obligations

a. Business will obtain from Patients all legally required (as advised by Provider) informed consents for treatment and consents related to health data collection on behalf of Provider and transmit such consents securely to Provider.

b. Business will enable Patients to connect with Provider and its assigned Clinician(s), collect relevant information and data from Patients, collect orders, and facilitate order or prescription fulfillment. It shall be Business' obligation to collect payments from patients and to pay Provider for its services. Business shall also maintain the Website and conduct all branding and marketing efforts.

c. Business shall comply with all applicable state and Federal laws and regulations regarding the collection, use and disclosure of a Website user's personal information, including laws and regulations regarding the privacy and security of medical information, where applicable.

d. Business is not a licensed medical provider. Accordingly, Business will act solely as a navigator for the provision of healthcare services. Website users seeking healthcare services through the Website will be directed to Provider, and Provider or its agents will establish a direct provider/patient relationship with the Website users who become Patients based their eligibility determined solely by the Provider based on its professional judgment. Business will not, and cannot, establish a provider/patient relationship with Patients, and it will not participate in any healthcare decisions regarding the Patients.

3. Confidentiality and HIPAA.

a. **Definition.** In connection with this Agreement, each Party (a "Disclosing Party") may disclose confidential or proprietary information to the other Party (a "Receiving Party"). Subject

to the exceptions listed below, “Confidential Information” means information disclosed by or on behalf of the Disclosing Party to the Receiving Party under this Agreement and during its term that is actually treated by the Disclosing Party as confidential and either: (i) is clearly marked or otherwise clearly designated as confidential or proprietary; (ii) is described in this Section 3(a); or (iii) should be reasonably understood by the Receiving Party to be the confidential or proprietary information of the Disclosing Party.

b. Exceptions. Confidential Information shall not include any information that: (i) is or becomes publicly available through no wrongful act of the Receiving Party; (ii) the Receiving Party can demonstrate was in the Receiving Party’s possession free of any obligation of confidentiality at the time of the Disclosing Party’s communication of it to the Receiving Party; (iii) becomes known to the Receiving Party directly or indirectly from a source other than one having an obligation of confidentiality; or (iv) is developed by the Receiving Party completely independent from the Confidential Information of the Disclosing Party. Notwithstanding any provision in this Section to the contrary, in the event that Receiving Party becomes obligated by mandatory applicable law, regulatory rule or judicial or administrative order to disclose Disclosing Party’s Confidential Information, or any portion thereof, Receiving Party shall notify Disclosing Party, so that the Disclosing Party may seek an appropriate protective order or other, similar remedy or relief with respect to resisting or narrowing the scope of such disclosure. In the absence of such a protective order or other remedy or relief, Receiving Party may disclose such Confidential Information, provided that Receiving Party furnishes only such portion of the Confidential Information as it is legally required to disclose.

c. Obligations of Confidentiality. During the term of this Agreement and for a period of three (3) years after its expiration or termination, each Party shall keep the Confidential Information of the other Party in strict confidence and neither Party may use or otherwise disclose the other Party’s Confidential Information to any third Party without the prior written consent of the Disclosing Party. Each Party may use and disclose the Confidential Information of the other Party to its employees or subcontractors to the limited extent necessary to permit such Party to perform its obligations under the Agreement, provided that each third party to whom Receiving Party discloses such Confidential Information is bound by obligations of confidentiality with respect to such Confidential Information that are consistent with this Section. Upon the termination of this Agreement, each Party shall return to the other Party or destroy all Confidential Information of such other Party in its possession, custody, or control.

d. HIPAA. The Parties agree to comply with all applicable federal and state laws and regulations relating to the maintenance, uses and disclosures of protected health information, including without limitation the Health Insurance Portability and Accountability Act of 1996, as codified at 42 USC § 1320d through d-8 (“HIPAA”). The Parties agree that Provider is a Covered Entity and Business is a Business Associate under HIPAA, and each Party shall comply with its respective obligations under the Business Associate Agreement attached hereto as Exhibit A and incorporated herein (the “BAA”).

e. Equitable Relief. Both Parties agree that any breach of the confidentiality obligations under this Section may result in irreparable damage for which there is no adequate remedy at law. Therefore, it is agreed that the non-breaching Party shall be entitled to seek equitable relief, without the necessity of posting a bond or other undertaking, including permanent injunctive relief

enjoining such breach, by a court of competent jurisdiction, in addition to whatever remedies it may have at law.

4. Intellectual Property Rights

a. “Intellectual Property Rights” means all intellectual property rights or similar proprietary rights, including (a) patent rights and utility models, (b) copyrights and database rights, (c) trademarks, trade names, domain names and trade dress and the goodwill associated therewith, (d) trade secrets, (e) mask works, and (f) industrial design rights; in each case, including any registrations of, applications to register, and renewals and extensions of, any of the foregoing in any jurisdiction in the world.

b. Trademark License. Each Party hereby grants the other Party a limited, revocable, non-exclusive license to use its trademarks, logos, or artwork (“Licensed IP”) solely for the purpose of displaying such Licensed IP on websites, packaging, invoices and customer service correspondence to Patients as may be necessary or mutually desired under this Agreement.

c. Business Intellectual Property. As between the Parties, all right title and interest, including all Intellectual Property Rights, in its Confidential Information, the Website, Business services, materials and all modifications and enhancements thereof, belong to and are retained solely by Business or Business’s licensors, as applicable.

d. Provider Intellectual Property. As between the Parties, all right title and interest, including all Intellectual Property Rights, in the Provider Platform, medical records, clinical services, materials (other than materials which are Business Intellectual Property and all modifications and enhancements thereof) belong to and are retained solely by Provider or Provider’s licensors, as applicable.

5. Fees.

a. Visit Fee. Provider shall be paid a visit fee for each patient encounter conducted by Provider (a “Visit Fee”). The amount of the Visit Fee for each of type (if variable) of encounter shall be determined during Parties integration onboarding. All such Visit Fees are exclusive of any taxes, VAT, sales, use, or excise taxes imposed on the sale or use of the Provider’s services, all of which shall be borne exclusively by Business.

b. Fee Collection and Monthly Report. Utilizing Bask’s software, the Provider will collect fees from Patients and provide to Business a monthly report of total visits by type. Within 30 days of such report, Business will remit payment to Provider via the Bask platform.

c. Third-Party Terms. The Parties acknowledge and agree that as users and customers of Bask’s software services they are each subject to terms and conditions, policies and other any applicable agreements with Bask that may dictate certain terms of the Parties’ integration, including protocols related to invoicing, payouts, payment processing and payment methods. The Parties further acknowledge and agree that, via Bask or otherwise, the Parties may access and use the services of additional third-parties and, therefore, may be subject to the specific terms and

conditions of such third-parties. It is each Party's responsibility to understand and comply with any such additional terms and conditions, as may be applicable.

6. Term and Termination

a. The term of this Agreement shall commence on the Effective Date and shall continue for one (1) year (the "Initial Term"). Thereafter, this Agreement shall automatically renew for successive one (1) year terms unless either Party provides notice of non-renewal at least 30 days prior to the termination of the then current Term (each, a "Renewal Term"). The Initial Term and all Renewal Terms are, collectively, the "Term".

b. Either Party may terminate this Agreement for convenience with sixty (60) days' notice for any or no reason.

c. Either Party may terminate this Agreement immediately if the other Party fails to perform or materially observe any of its obligations hereunder or otherwise breaches any representation or warranty hereunder.

d. Termination of this Agreement by either Party shall not limit or affect any rights and remedies of law or equity or otherwise a Party may have which accrued from events occurring prior to such termination date.

7. Indemnification

a. Mutual Indemnification. Each Party shall indemnify, defend and hold the other Party, its affiliates, and their respective officers, directors, employees, contractors and agents harmless from and against any and all liability, loss, injury, claim, or damage (including reasonable attorneys' fees) of the other Party arising directly or indirectly out of a third party claim (each, a "Claim") based on the (i) indemnifying party's material breach of this Agreement, or (ii) the negligent or willful operations, acts or omissions of the indemnifying party relating to or arising out of this Agreement.

b. Provider Indemnification. Provider shall indemnify, defend, and hold Business and its officers, directors, employees, contractors, and agents harmless from and against any and all Claims based on any action for personal injury, death, disability, property damage, privacy breach or cause of action relating to services provided by Provider.

c. Business Indemnification. Business shall indemnify, defend, and hold Provider and its affiliates and their respective officers, directors, employees, contractors, and agents harmless from and against any and all Claims based on (1) an allegation that the Website infringes upon or misappropriates the Intellectual Property Rights of a third party or (2) breach of a Patient's rights to privacy related to the collection and disclosure of personal information by Business.

8. Warranties; Limitation of Liability

a. Mutual Warranties. Each Party represents and warrants to the other Party that: (i) it has the power and authority to enter into and perform this Agreement; (ii) the execution, delivery and

performance of this Agreement will not violate any applicable contract, law, rule or regulation to which such Party is bound; and (iii) it is, and at all times during the performance of this Agreement, will remain in material compliance with all applicable laws, rules and regulations, including, but not limited to in the case of Provider, all state and federal laws regulating the provision of healthcare services, the licensing of Clinicians, and the handling and issuance of prescriptions.

b. Provider Warranties. Provider represents and warrants that neither Provider, nor any of its employees, officers or agents: (i) are “sanctioned persons” under any federal or state program or law; (ii) has been listed in the current Cumulative Sanction List of the Office of Inspector General for the United States Department of Health and Human Services for currently sanctioned or excluded individuals or entities; (iii) has been listed on the General Services Administration’s List of Parties Excluded from Federal Programs; (iv) has been listed on the United States Department of Treasury, Office of Foreign Assets Control’s Specially Designated Nationals and Blocked Persons List; or (v) has been convicted of a criminal offense related to health care.

c. Limitation of Liability. IN NO EVENT WILL EITHER PARTY, ITS AFFILIATES, THIRD PARTY SERVICE PROVIDERS, OR ITS OR THEIR RESPECTIVE DIRECTORS, OFFICERS, EMPLOYEES, AGENTS, SUCCESSORS OR ASSIGNS, BE LIABLE TO THE OTHER PARTY, INCLUDING PATIENTS, OR ANY THIRD PARTY FOR ANY LOST PROFITS, LOST DATA, INTERRUPTION OF BUSINESS, OR OTHER SPECIAL, INDIRECT, PUNITIVE, INCIDENTAL, OR CONSEQUENTIAL DAMAGES OF ANY KIND, WHETHER IN CONTRACT, TORT (INCLUDING WITHOUT LIMITATION NEGLIGENCE) OR OTHERWISE, ARISING OUT OF OR IN CONNECTION WITH THIS AGREEMENT, AND WHETHER OR NOT CUSTOMER HAS BEEN ADVISED OF THE POSSIBILITY OF SUCH DAMAGE. TO THE EXTENT CERTAIN JURISDICTIONS LIMIT THE EXCLUSION OF DAMAGES OR LIMITATION OF LIABILITY HEREUNDER OR OTHERWISE RENDER ANY PART OF THE EXCLUSIONS OF DAMAGES OR LIMITATIONS OF LIABILITY UNENFORCEABLE, THE ABOVE EXCLUSIONS AND LIMITATIONS SHALL BE MODIFIED TO THE MAXIMUM EXTENT PERMITTED BY LAW, EVEN IF ANY REMEDY FAILS ITS ESSENTIAL PURPOSE.

9. Miscellaneous Provisions

a. Entire Agreement. This Agreement supersedes all prior discussions and agreements between the Parties with respect to the subject matter hereof, and this Agreement contains the sole and entire agreement (subject to Section 5c herein) between the Parties with respect to the matters covered hereby. Any future exhibits, attachments, additions and/or modifications to this Agreement must be in writing (which may include electronic form) and accepted by both Parties, including via click-through acceptance on the Bask Health platform.

b. Relationship of the Parties. Provider is an independent contractor of Business under this Agreement, and nothing in this Agreement shall be deemed to create a partnership, joint venture, employment, or similar relationship. or unemployment tax with respect to Provider. Such taxes are the responsibility of Provider.

c. Assignment. This Agreement shall be binding upon and inure to the benefit only of the Parties and their respective successors and permitted assigns. Neither Party may assign this

Agreement or any of its respective rights, duties, or obligations under this Agreement without the prior written consent of the other party.

d. Waiver. No waiver will be implied from conduct or failure to enforce rights. No waiver will be effective unless in a writing signed on behalf of the party against whom the waiver is asserted.

e. Severability. All rights and restrictions contained herein may be exercised and shall be applicable and binding only to the extent that they do not violate any applicable laws and are intended to be limited to the extent necessary so that they will not render this Agreement illegal, invalid or unenforceable. If any term of this Agreement shall be held to be illegal, invalid or unenforceable by a court of competent jurisdiction, it is the intention of the Parties that the remaining terms shall constitute their agreement with respect to the subject matter of this Agreement, and all such remaining terms shall remain in full force and effect.

f. Governing Law. This Agreement shall be governed by and construed and enforced in accordance with the laws of the State of Delaware without regard to its conflicts of laws rules.

g. Disputes. In case of disputes in connection with this Agreement, Parties agree to seek binding and final arbitration in Delaware by a single arbitrator selected by the Parties (or by the American Arbitration Association if the Parties cannot agree) in accordance with the law of Delaware and the rules of the American Arbitration Association.

THE PARTIES FURTHER AGREE, TO THE EXTENT PERMITTED BY APPLICABLE LAW, TO WAIVE ANY RIGHT TO TRIAL BY JURY WITH RESPECT TO ANY CLAIM, COUNTERCLAIM OR ACTION ARISING FROM THE TERMS OF THIS AGREEMENT.

h. Survival. The sections of this Agreement that by their nature are intended to survive its expiration or termination will survive the expiration or termination of this Agreement.

IN WITNESS WHEREOF, and intending to be legally bound, the Parties agree that this Agreement is validly formed and effective upon each Party's click-through acceptance via the Bask Health platform. By clicking "I Agree" or otherwise accepting this Agreement electronically, each Party's authorized representative confirms that Party's agreement to the terms hereof as of the Effective Date. Electronic acceptance shall have the same legal effect as a handwritten signature and constitutes execution of this Agreement.

**ACCEPTED BY PROVIDER AND BUSINESS VIA ELECTRONIC CLICK-THROUGH
ACCEPTANCE ON THE BASK HEALTH PLATFORM**

Provider: As identified in the Bask Health platform provider profile

Business: As identified in the Bask Health platform business profile

Exhibit A

BUSINESS ASSOCIATE AGREEMENT

In accordance with the regulations set forth in 45 C.F.R. Parts 160 and 164 issued pursuant to the Health Insurance Portability and Accountability Act of 1996 (“HIPAA”) and the Health Information Technology for Economic and Clinical Health (“HITECH”) Act set forth in 42 U.S.C. § 17921 et seq., Provider (as identified in the Bask Health platform provider profile) (“Covered Entity”) and Business (as identified in the Bask Health platform business profile) (“Business Associate”) hereby enter into this Business Associate Agreement (this “BAA”) as of the date on which Business completes click-through acceptance of the Provider Group Services Agreement via the Bask Health platform (the “Effective Date”). Covered Entity and Business Associate are sometimes hereinafter referred to individually as a “Party” and collectively as the “Parties.”

WHEREAS, Covered Entity is a “Covered Entity,” as defined in HIPAA;

WHEREAS, HIPAA requires covered entities to protect the privacy of “Protected Health Information” (as defined below) by entering into agreements with persons and entities providing services for covered entities that involve the use or disclosure of protected health information;

WHEREAS, Business Associate is directly subject to HITECH and certain HIPAA provisions;

WHEREAS, Business Associate has been engaged by Covered Entity to provide certain software tools and services that involve the use or disclosure of Protected Health Information (the “Services”) on behalf of Covered Entity;

WHEREAS, in the event that Business Associate is asked to provide the Services on behalf of Covered Entity, Business Associate shall serve as a “Business Associate,” as defined in HIPAA;

WHEREAS, the Parties desire to conduct their business relationship in a manner consistent with the requirements of HIPAA and HITECH.

NOW THEREFORE, in exchange for good and valuable consideration, the receipt and sufficiency of which are hereby acknowledged, the Parties agree to incorporate the forgoing recitals as rewritten herein and further agree as follows:

1. DEFINITIONS.

a. Generally. The following terms used in this BAA shall have the same meaning as those terms in the HIPAA Rules (as defined below): Breach, Data Aggregation, Designated Record Set, Disclosure, Health Care Operations, Individual, Minimum Necessary, Notice of Privacy

Practices, Protected Health Information, Required By Law, Secretary, Security Incident, Subcontractor, Unsecured Protected Health Information, Use, and Workforce.

b. Business Associate. “Business Associate” shall generally have the same meaning as the term “business associate” at 45 C.F.R. §160.103.

c. Covered Entity. “Covered Entity” shall generally have the same meaning as the term “covered entity” at 45 C.F.R. §160.103.

d. HIPAA Rules. “HIPAA Rules” shall mean the Privacy, Security, Breach Notification, and Enforcement Rules at 45 C.F.R. Part 160 and Part 164.

e. Protected Health Information. “Protected Health Information” or “PHI” shall generally have the same meaning as the term “protected health information” at 45 C.F.R. §160.103, but in reference to this BAA shall be limited to PHI of the Covered Entity, including PHI created by Business Associate on behalf of the Covered Entity.

f. Subcontractor. “Subcontractor” shall generally have the same meaning as the term “subcontractor” at 45 C.F.R. §160.103.

2. OBLIGATIONS OF BUSINESS ASSOCIATE.

a. Use or Disclosure of Information.

i. Business Associate shall not Use or Disclose Protected Health Information other than as required to perform the Services or as Required By Law. Moreover, Business Associate shall at all times comply with the provisions of the HIPAA Rules applicable to Business Associate.

ii. Business Associate agrees to limit Uses and Disclosures and requests for Protected Health Information to the Minimum Necessary.

iii. Business Associate shall not Use or Disclose Protected Health Information in a manner that would violate Subpart E of 45 C.F.R. Part 164 if done by Covered Entity except for the specific Uses and Disclosures set forth in subparagraphs (iv), (v), and (vi) below.

iv. Business Associate may Use Protected Health Information for the proper management and administration of the Business Associate or to carry out the Business Associate’s legal responsibilities.

v. Business Associate may Disclose Protected Health Information for the proper management and administration of Business Associate or to carry out the Business Associate’s legal responsibilities, provided the Disclosures are Required by Law, or Business Associate obtains reasonable assurances from the person to whom the information is Disclosed that the information shall remain confidential and Used or further Disclosed only as Required by Law or for the purposes for which it was Disclosed to the person, and the person notifies Business

Associate of any instances of which it is aware in which the confidentiality of the information has been Breached.

vi. Business Associate may provide Data Aggregation services relating to the Health Care Operations of the Covered Entity.

b. Safeguards. Business Associate shall use appropriate administrative, physical and technical safeguards, and comply with Subpart C of 45 C.F.R. Part 164 with respect to electronic Protected Health Information, to prevent Use or Disclosure of Protected Health Information other than as provided for by this BAA, including, without limitation, appropriate training and discipline of Business Associate's Workforce and restrictions on access to Protected Health Information.

c. Mitigation. Business Associate shall immediately mitigate any harmful effect resulting from Use or Disclosure of Protected Health Information by Business Associate, or its Subcontractors or agents, in violation of the requirements of this BAA.

d. Reporting Breaches. Business Associate shall notify Covered Entity upon Business Associate's discovery of a Breach within ten (10) days of Business Associate's discovery of such Breach. Such notice shall include the identification of each individual whose Unsecured Protected Health Information has been or is reasonably believed by Business Associate to have been, accessed, acquired, or disclosed during such Breach. Business Associate shall reasonably cooperate with and assist Covered Entity in making notification to third parties as required by the HIPAA Rules in the event of a Breach due solely to Business Associate.

e. Reporting Noncompliance. Business Associate shall report to Covered Entity any:

i. Use or Disclosure of Protected Health Information not expressly provided for by this BAA within ten (10) days of Business Associate's discovery of such Use or Disclosure; and

ii. Any Security Incident of which Business Associate becomes aware in the following manner: (a) any actual, successful Security Incident shall be reported to Covered Entity in writing, after reasonable investigation by Business Associate; and (b) any attempted, unsuccessful Security Incident, of which Business Associate becomes aware, shall be reported to Entity in writing, on a reasonable basis. If the HIPAA Rules are amended to remove the requirement to report unsuccessful attempts at unauthorized access, this subsection shall no longer apply as of the effective date of the amendment of the HIPAA Rules. Notwithstanding the foregoing, the parties acknowledge and agree that this Section 2(e) constitutes notice by Business Associate to Covered Entity of the ongoing existence and occurrence or attempts of Unsuccessful Security Incidents for which no additional notice to Covered Entity shall be required. "Unsuccessful Security Incidents" means, without limitation, pings and other broadcast attacks on Business Associate's firewall, port scans, unsuccessful log-on attempts, denial of services attacks,

and any combination of the above, so long as no such incidents results in unauthorized access, Use, or Disclosure of Covered Entity's electronic PHI.

f. Subcontractors and Agents. In accordance with 45 C.F.R. §164.502(e)(1)(ii) and 164.308(b)(2), Business Associate shall, if applicable, ensure that any Subcontractors or agents that create, receive, maintain, or transmit Protected Health Information on the Business Associate's behalf agree in writing to the same restrictions, conditions, and requirements that apply to the Business Associate with respect to such information.

g. Access. Within fifteen (15) days of receipt of a request from Covered Entity, Business Associate shall make available Protected Health Information maintained in a Designated Record Set or otherwise provide access to such Protected Health Information to the Covered Entity or the Individual in order to comply with the Individual's right to access Protected Health Information as provided in 45 C.F.R. § 164.524.

h. Accounting. Business Associate shall maintain and, within fifteen (15) business days of receipt of a request from Covered Entity, make available the information required to provide an accounting of Disclosures to the Covered Entity or the Individual as necessary to satisfy Covered Entity's obligations under 45 C.F.R. §164.528. If an Individual makes a request for an accounting of Disclosures directly to Business Associate, Business Associate shall provide such accounting to the Individual within fifteen (15) business days of receipt of the request.

i. Amendments. Business Associate shall make any amendment(s) to Protected Health Information maintained in a Designated Record Set as directed or agreed to by the Covered Entity pursuant to 45 C.F.R. §164.526, or take other measures as necessary to satisfy Covered Entity's obligations under 45 C.F.R. §164.526, within fifteen (15) business days of Business Associate's receipt of such request.

j. Compliance With Investigations. Business Associate shall make all internal practices, books, records, and agreements with Subcontractors and agents relating to the Use and Disclosure of Protected Health Information received or maintained pursuant to this BAA available to the Secretary for purposes of determining Covered Entity's or Business Associate's compliance with the HIPAA Rules.

k. Subpoenas. Business Associate shall notify Covered Entity within five (5) business days of Business Associate's receipt of any subpoena, discovery request, or other lawful process for Protected Health Information that is not accompanied by an order of a court or administrative tribunal. To the extent that Covered Entity decides to assume responsibility for challenging the validity of such request, Business Associate agrees to cooperate fully with Covered Entity in such challenge, at Covered Entity's expense.

l. Performance of Covered Entity's Obligations. To the extent Business Associate is to carry out any obligation of Covered Entity under the HIPAA Rules, Business Associate shall agree to comply with the same requirements that apply to Covered Entity in the performance of such obligation.

3. OBLIGATIONS OF COVERED ENTITY.

a. Notice of Privacy Practices and Restrictions.

i. Covered Entity shall notify Business Associate of any limitation(s) in Covered Entity's notice of privacy practices under 45 C.F.R. §164.520, to the extent that such limitation may affect Business Associate's Use or Disclosure of Protected Health Information.

ii. Covered Entity shall notify Business Associate of any changes in, or revocation of, the permission by an individual to Use or Disclose his or her Protected Health Information, to the extent that such changes may affect Business Associate's Use or Disclosure of Protected Health Information.

iii. Covered Entity shall notify Business Associate of any restriction on the Use or Disclosure of Protected Health Information that Covered Entity has agreed to or is required to abide by under 45 C.F.R. §164.522, to the extent that such restriction may affect Business Associate's Use or Disclosure of Protected Health Information.

b. Minimum Necessary. Covered Entity shall limit any disclosure of PHI to the Minimum Necessary to accomplish the intended purpose of such Disclosure, as specified by the HIPAA Rules and any relevant guidance by the U.S. Department of Health and Human Services.

c. Permissible Requests by Covered Entity. Covered Entity shall not request Business Associate to Use or Disclose Protected Health Information in any manner that would not be permissible under Subpart E of 45 C.F.R. Part 164 if done by Covered Entity, except for the specific Uses or Disclosure of set forth in paragraphs iv, v, and vi of Section 2.a. Covered Entity shall not request Business Associate to use or disclose PHI in any manner that would not be permissible under Subpart E of 45 C.F.R. Part 164 if done by Covered Entity.

4. TERMINATION.

a. Term. The term of this BAA shall begin on the Effective Date and shall terminate upon the termination or expiration of the engagement for the Services or on the date either Party terminates this BAA for cause as authorized in paragraph (b) of this Section, whichever is sooner.

b. Cause for Termination. Either Party may immediately terminate this BAA and the engagement for the Services upon a material breach of the provisions of this BAA or the HIPAA Rules by the other Party. Termination shall be effective upon delivery of written notice of termination to the other Party.

c. Effect of Termination. Upon termination of this BAA for any reason, Business Associate shall:

i. Retain only that Protected Health Information which is necessary for Business Associate to continue its proper management and administration or to carry out its legal responsibilities;

ii. Return to Covered Entity or, if agreed to by Covered Entity, destroy the remaining Protected Health Information that the Business Associate maintains in any form;

iii. Continue to use appropriate safeguards and comply with Subpart C of 45 C.F.R. Part 164 with respect to electronic Protected Health Information to prevent Use or Disclosure of the Protected Health Information, other than as provided for in this Section 4(c) for as long as Business Associate retains the Protected Health Information;

iv. Not Use or Disclose the Protected Health Information retained by Business Associate other than for the purposes for which such Protected Health Information was retained and subject to the same conditions set forth in Section 2(a) which applied prior to termination; and

v. Return to Covered Entity or, if agreed to by Covered Entity, destroy the Protected Health Information retained by Business Associate when it is no longer needed by Business Associate for its proper management and administration or to carry out its legal responsibilities.

d. Survival. The obligations of Business Associate under this Section and Section 2 shall survive the termination or expiration of this BAA.

5. MISCELLANEOUS.

a. Regulatory References. A reference in this BAA to a section in the HIPAA Rules means the section as in effect or as amended, and for which compliance is required.

b. Amendment. The Parties agree to take such action as is necessary to amend this BAA from time to time as is necessary or appropriate for the Parties to comply with the requirements of the HIPAA Rules.

c. Remedies. Business Associate hereby agrees that Covered Entity shall suffer irreparable damage upon Business Associate's breach of this BAA and that such damages shall be difficult to quantify. Business Associate hereby agrees that, in addition to all other available remedies at law or in equity, Covered Entity may file an action for an injunction to enforce the

terms of this BAA against Business Associate, in addition to any other remedy Covered Entity may have.

d. Interpretation. Any ambiguity in this BAA shall be resolved in favor of a meaning that permits compliance with the HIPAA Rules.

e. No Third Party Rights. Nothing in this BAA is intended or shall be construed to confer any rights or entitlements to remedy on any person or entity other than Covered Entity and Business Associate.

f. Counterparts. This BAA is executed via click-through acceptance on the Bask Health platform, which shall constitute binding execution with the same legal effect as a handwritten signature. Electronic records of acceptance maintained by the Bask Health platform shall be sufficient to bind the Parties to the terms and conditions of this BAA.

g. Entire Agreement. This BAA represents the Parties' complete understanding and agreement with respect to the subject matter of this BAA and shall supersede any prior agreements and understandings between the Parties with respect to the subject matter of this BAA. This BAA may not be modified, terminated or extended orally unless set forth in written form, signed by both Parties.

IN WITNESS WHEREOF, the Parties agree that this BAA is validly formed and effective upon Business's click-through acceptance via the Bask Health platform, which constitutes binding execution of this BAA. Electronic acceptance shall have the same legal effect as a handwritten signature.

BUSINESS ASSOCIATE ("Business"): Accepted via click-through on Bask Health platform

COVERED ENTITY ("Provider"): Accepted via click-through on Bask Health platform

Provider: As identified in the Bask Health platform provider profile

Business: As identified in the Bask Health platform business profile